



CHAPTER lxvi.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to King's County (four) and the Rural District of Larne. A.D. 1910.

[26th July 1910.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as "the Local Government Board") have made the Provisional Orders set forth in Schedules A. B. C. and D. hereto under the Local Government (Ireland) Act 1898 and the Provisional Order set forth in Schedule E. hereto under the Public Health (Ireland) Acts 1878 to 1907:

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedules hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 5) Act 1910. Short title.

A.D. 1910.

SCHEDULES.

SCHEDULE A.

KING'S COUNTY.

*King's
County.*

*Provisional Order to transfer the business of the Drainage
Board for the Boolinarrig Drainage District to the
County Council of the King's County.*

35 & 36 Vict.
c. lxiv.

WHEREAS the Boolinarrig Drainage District was constituted by a Provisional Order of the Commissioners of Public Works in Ireland dated the twenty-seventh day of March one thousand eight hundred and seventy-two and confirmed by the Drainage and Improvement of Lands Supplemental Act (Ireland) 1872 and the said district is wholly situate within the King's County:

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an order transferring to the county council of the King's County the business arising in their county under the Drainage and Improvement of Lands (Ireland) Acts 1863 to 1892 of the drainage board for the said district:

And whereas the said drainage board have consented to the making of this Order:

61 & 62 Vict.
c. 37.

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:—

1. There shall be transferred to the county council of the King's County the business arising in their county under the Drainage and Improvement of Lands (Ireland) Acts 1863 to 1892 of the drainage board for the Boolinarrig Drainage District.

2. The costs and expenses of the county council and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Boolinarrig Drainage Order 1910.

Given under our seal of office this twentieth day of April in the year of our Lord one thousand nine hundred and ten.

(L.S.)

(Signed) T. J. STAFFORD.

SCHEDULE B.

A.D. 1910.

KING'S COUNTY.

*Provisional Order to transfer the business of the Trustees
for the Castlebernard Drainage District to the
County Council of the King's County.*

*King's
County.*

WHEREAS the Trustees for the Castlebernard Drainage District were appointed under the Drainage (Ireland) Act 1842 and the said district is situate wholly within the King's County: 5 & 6 Vict.
c. 89.

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an order transferring to the county council of the King's County the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the trustees for the said district:

And whereas the said trustees have consented to the making of this Order:

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:-- 61 & 62 Vict.
c. 37.

1. There shall be transferred to the county council of the King's County the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the trustees for the Castlebernard Drainage District.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Castlebernard Drainage Order 1910.

Given under our seal of office this twentieth day of April in the year of our Lord one thousand nine hundred and ten.

(L.S.)

(Signed) T. J. STAFFORD.

A.D. 1910.

SCHEDULE C.

KING'S COUNTY.

*King's
County.*

*Provisional Order to transfer the business of the Drainage
Board for the Derrinlough Drainage District to the
County Council of the King's County.*

34 & 35 Vict.
c. lxii.

WHEREAS the Derrinlough Drainage District was constituted by a Provisional Order of the Commissioners of Public Works in Ireland dated the thirtieth day of August one thousand eight hundred and seventy and confirmed by the Drainage and Improvement of Lands Supplemental Act (Ireland) 1871 and the said district is wholly situate within the King's County:

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an order transferring to the county council of the King's County the business arising in their county under the Drainage and Improvement of Lands (Ireland) Acts 1863 to 1892 of the drainage board for the said district:

And whereas the said drainage board have consented to the making of this Order:

61 & 62 Vict.
c. 37.

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:—

1. There shall be transferred to the county council of the King's County the business arising in their county under the Drainage and Improvement of Lands (Ireland) Acts 1863 to 1892 of the drainage board for the Derrinlough Drainage District.

2. The costs and expenses of the county council and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Derrinlough Drainage Order 1910.

Given under our seal of office this twentieth day of April in the year of our Lord one thousand nine hundred and ten.

(L.S.)

(Signed) T. J. STAFFORD.

SCHEDULE D.

A.D. 1910.

KING'S COUNTY.

*Provisional Order to transfer the business of the Drainage
Board for the Frankford River Drainage District
to the County Council of the King's County.*

*King's
County*

WHEREAS the Frankford River Drainage District was constituted by a Provisional Order of the Commissioners of Public Works in Ireland dated the sixteenth day of July one thousand eight hundred and sixty-nine and confirmed by the Drainage and Improvement of Lands Supplemental Act (Ireland) 1870 and the said district is wholly situate within the King's County: 33 & 34 Vict
c. lxxxi.

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an order transferring to the county council of the King's County the business arising in their county under the Drainage and Improvement of Lands (Ireland) Acts 1863 to 1892 of the drainage board for the said district:

And whereas the said drainage board have consented to the making of this Order:

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:— 61 & 62 Vict.
c. 37.

1. There shall be transferred to the county council of the King's County the business arising in their county under the Drainage and Improvement of Lands (Ireland) Acts 1863 to 1892 of the drainage board for the Frankford River Drainage District.

2. The costs and expenses of the Local Government Board incurred in respect of the application for making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Frankford River Drainage Order 1910.

Given under our seal of office this twentieth day of April in the year of our Lord one thousand nine hundred and ten.

(L.S.)

(Signed)

T. J. STAFFORD.

A.D. 1910.

SCHEDULE E.

RURAL DISTRICT OF LARNE.

*Larne. Provisional Order to enable the Council of the Rural District
of Larne to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

WHEREAS the council of the rural district of Larne (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a system of sewerage for the locality known as Greenisland in their district:

41 & 42 Vict.
c. 52. Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

59 & 60 Vict.
c. 54. 1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. The district council shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the district council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals If any such work

[10 EDW. 7 & *Local Government Board (Ireland)* [Ch. lxvi.]
1 GEO. 5.] *Provisional Orders Confirmation (No. 5) Act, 1910.*

be commenced or completed contrary to the provisions of this Article the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the district council and the amount of such costs and charges shall be a debt due from the district council to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1910.

Larne.

3. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the district council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

4. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Antrim in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

61 & 62 Vict.
c. 37.

5. This Order may be cited as the Greenisland Sewerage Order 1910.

[Ch. lxvi.] *Local Government Board (Ireland)* [10 EDW. 7 & Provisional Orders Confirmation (No. 5) Act, 1910. 1 GEO. 5.]

A.D. 1910.

Larne.

SCHEDULE.

RURAL DISTRICT OF LARNE.

County of ANTRIM.

Reference to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PARISH OF ST. NICHOLAS—TOWNLAND OF CARRICKFERGUS WEST DIVISION.				
1	Garden containing 14p. -	Mrs. Sarah Dickson Mrs. Austina Winifred Elmett.	Francis Koeller	Francis Koeller.
2	Lawn containing 6p. -	Same	Same	Same.
3	Field containing 13p. -	Same	Same	Same.
4	Field and site of wooden hut containing 2r.	Same	Same	Same.
5	Same -	Same	Same	Same.
6	Field containing 3p. -	Same	Same	Same.

Given under our seal of office this twenty-sixth day of April in the year of our Lord one thousand nine hundred and ten.

(L.S.)

(Signed) H. A. ROBINSON.

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